

of the right of the purchaser to the production of the documents of title, and to delivery of copies thereof in lieu of the old covenant for production, and with reference to this

acknowledgment the following points are noticeable:

[*444] * (1). The person who “retains possession of the documents” (by which, apparently, is meant the person who *has* the documents in his possession, or under his control), and he only can give the statutory acknowledgment.

(2). The acknowledgment binds the documents in the possession or under the control of every person, who from time to time has such possession or control, but binds the “individual possessor or person so long only as he has possession or control thereof.”

(3). The acknowledgment does not confer any right to damages for loss or destruction of or injury to the documents from whatever cause arising.

(4). The acknowledgment satisfies any liability to give a covenant for production and delivery of copies of or extracts from documents.

The obligations and liabilities arising under the statutory acknowledgment correspond with those which arose under the old qualified covenant for production usually entered into by trustees independently of the act, and it is conceived that trustees may safely give the acknowledgment for documents in their possession and that they cannot be required to do more than give this acknowledgment.

57. Statutory undertaking. — The same section has introduced the practice of giving an undertaking in writing for safe custody of the documents retained, which “imposes on the person giving it and on every person having possession or control of the documents from time to time, but on each individual possessor or person so long only as he has possession or control thereof, an obligation to keep the documents safe, whole, uncanceled, and undefaced, unless prevented from so doing by fire or other inevitable accident,” and under this, trustees who have the custody of documents as to which a former holder has given the statutory undertaking will be personally liable for their safe custody, but it is conceived